

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
CHAD REDD,

Plaintiff,

Index No.:
Purchased:

-against-

CITY OF NEW YORK, EDUARD LUCERO, individually
and officially in his capacity as New York City police
officer, JOHN MANZO, individually and officially in his
capacity as New York City police officer, DANIEL
MATTHAUS, individually and officially in his capacity as
New York City police officer, ERICK REYES,
individually and officially in his capacity as New York City
police officer, MOHAMMA NOMANI, individually and
officially in his capacity as New York City police
lieutenant, and JOHN or JANE DOE 1-10, individually and
in officially in their capacities as New York City police
officers and/or lieutenants,Defendants.
-----X**SUMMONS**Plaintiff designates **Bronx County** as
the venue for trial by jury.The basis for venue is where the tort
arose.**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 14, 2020

SIM & DEPAOLA, LLP

BY: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer EDUARD LUCERO
Shield # 12992, Tax Id 960838
At 40th Precinct
257 Alexander Avenue
Bronx, New York 10454

Police Officer JOHN MANZO
Shield # 16260, Tax Id 960864
At 40th Precinct
257 Alexander Avenue
Bronx, New York 10454

Police Officer DANIEL MATTHAUS
Shield # 22715, Tax Id 930669
At 40th Precinct
257 Alexander Avenue
Bronx, New York 10454

Police Officer ERICK REYES
Shield # 13244, Tax Id 952161
At 40th Precinct
257 Alexander Avenue
Bronx, New York 10454

Lieutenant MOHAMMA NOMANI
Tax Id 930841
At 40th Precinct
257 Alexander Avenue
Bronx, New York 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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CHAD REDD,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, EDUARD LUCERO, individually and officially in his capacity as New York City police officer, JOHN MANZO, individually and officially in his capacity as New York City police officer, DANIEL MATTHAUS, individually and officially in his capacity as New York City police officer, ERICK REYES, individually and officially in his capacity as New York City police officer, MOHAMMA NOMANI, individually and officially in his capacity as New York City police lieutenant, and JOHN or JANE DOE 1-10, individually and in officially in their capacities as New York City police officers and/or lieutenants,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff, CHAD REDD, by his attorneys, Sim & DePaola, LLP, for his complaint against the above Defendants alleges as follows:

1. The claim arises from a June 3, 2017 incident in which Defendants, acting under color of state law, unlawfully assaulted, arrested and detained Plaintiff. As a result, Plaintiff was deprived of his liberty and suffered physical injuries. Plaintiff was incarcerated over the course of two (2) days, until the he was released on June 4, 2017. He was maliciously prosecuted, until the dismissal of all charges, on November 20, 2019.

2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff CHAD REDD ("Plaintiff") resides at 773 Conquest Village, Apt. 6B, County of Bronx, State of New York.
4. The Defendants City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendants City, acting through the New York City Police Department (or "NYPD") was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendants City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendants EDUARD LUCERO was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendants LUCERO was, at the times relevant herein, a police officer under Shield #12992, Tax ID # 960838 located at the 40th Precinct, 257 Alexander Avenue, Bronx, New York 10454. Defendants LUCERO is being sued in his individual and official capacities.

8. Defendants JOHN MANZO was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendants MANZO was, at the times relevant herein, a police officer under Shield # 16260, Tax ID # 960864 located at the 40th Precinct, 257 Alexander Avenue, Bronx, New York 10454. Defendants MANZO is being sued in his individual and official capacities.
9. Defendants DANIEL MATTHAUS was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendants MATTHAUS was, at the times relevant herein, a police officer under Shield # 22715 Tax ID # 930669 located at the 40th Precinct, 257 Alexander Avenue, Bronx, New York 10454. Defendants MATTHAUS is being sued in his individual and official capacities.
10. Defendants ERICK REYES was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendants REYES was, at the times relevant herein, a police officer under Shield # 13244, Tax ID # 952161 located at the 40th Precinct, 257 Alexander Avenue, Bronx, New York 10454. Defendants REYES is being sued in his individual and official capacities.
11. Defendants MOHAMMA NOMANI was, at all times here relevant, a sergeant employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendants NOMANI was, at the times relevant herein, a sergeant under Tax ID # 930841 located at the 40th Precinct, 257

Alexander Avenue, Bronx, New York 10454. Defendants NOMANI is being sued in her individual and official capacities.

12. At all times relevant Defendants John and Jane Doe 1-10 were police officers, lieutenants, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1-10 but is within knowledge of the Defendants.
13. At all times relevant herein, Defendants John and Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1-10 are sued in their individual and official capacities.
14. At all times here mentioned Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
15. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
16. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
17. Plaintiff has complied with municipal Defendants' request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
18. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

19. On June 3, 2017, at approximately 5:05 A.M., Plaintiff was in the vicinity of the Southwest Corner of 3rd Avenue and East 138th Street, County of the Bronx, State of New York.
20. While Plaintiff's motor vehicle was parked near a fire hydrant, he was confronted and assaulted by Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10.
21. Defendants', including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and other unidentified officers, John or Jane Doe 1-10 forcibly pulled the Plaintiff from his motor vehicle and forced him to the ground.
22. At no time did Plaintiff give Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10 a reason to violently pull him out of his motor vehicle and force him to the ground.
23. At no time prior to Plaintiff being violently pulled from his motor vehicle and forced to the ground, did Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10 identify themselves as Police Officers and Lieutenants.
24. At no time prior to Plaintiff being violently pulled out of his motor vehicle and forced to the ground, did Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10, observe Plaintiff committing a crime or violation of the law.
25. Plaintiff was searched and seized in an unlawful manner by Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and other unidentified

- officers, John or Jane Doe 1-10, when they physically grabbed the Plaintiff's body without probable cause, pulled him from his motor vehicle and forced him to the ground.
26. While Plaintiff was on the ground, Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and other unidentified officers, John or Jane Doe 1-10 proceeded to grab and continue to force him to ground.
27. Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10 had no probable cause or reasonable suspicion to arrest, detain or stop Plaintiff, as Plaintiff had not committed any crime or violation of the law.
28. Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10 fabricated a false narrative, in which they claimed Plaintiff was Driving While Intoxicated, Driving While Ability Impaired and resisted attempts by Defendants to place him under arrest, when they knew such claims to be untrue and complete fabrications.
29. Plaintiff had multiple assaults and batteries committed to his person including but not limited to being placed in handcuffs too tight, being forcibly pulled out of his motor vehicle and forced to the ground.
30. Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10 suppressed evidence and engaged in conduct undertaken in bad faith, namely fabricating false accounts that Plaintiff was Driving While Intoxicated, Driving While Ability Impaired and resisted arrest.
31. Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10 have displayed a pattern and practice of falsely accusing

individuals of Driving While Intoxicated, Driving While Ability Impaired and resisting arrest in cases where Defendants have used excessive and unreasonable force.

32. During all of the events described, the Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10 acted maliciously and with intent to injure Plaintiff.
33. At all times relevant hereto, Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10 engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants observed others doing so, all in furtherance of Plaintiff's being seriously injured.
34. As a direct and proximate result of the acts of Defendants, including LUCERO, MANZO, MATTHAUS, REYES, NOMANI and John or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.
35. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
36. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIRST CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

37. The above paragraphs are here incorporated by reference as though fully set forth.

38. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

39. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

40. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

41. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

42. Accordingly, Defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

43. Defendants City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

44. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION
Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

45. The above paragraphs are here incorporated by reference as though fully set forth.

46. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

47. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

48. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

49. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

50. Accordingly, Defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

51. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

52. The above paragraphs are here incorporated by reference as though fully set forth.

53. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

54. Plaintiff was conscious of his confinement.

55. Plaintiff did not consent to his confinement.

56. Plaintiff's arrest and false imprisonment was not otherwise privileged.

57. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

59. The above paragraphs are here incorporated by reference as though fully set forth.
60. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
61. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
62. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
63. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

64. The above paragraphs are here incorporated by reference as though fully set forth.
65. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.
66. Defendants engaged in and subjected plaintiff to immediate harmful or offensive touching and battered him without his consent.
67. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
68. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under

42 U.S.C. § 1983 Against Individual Defendants

69. The above paragraphs are here incorporated by reference as though fully set forth.

70. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

71. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

72. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under

New York State Law

73. The above paragraphs are here incorporated by reference as though fully set forth.

74. Defendants initiated the prosecution against Plaintiff.

75. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

76. Defendants acted with malice, which may be inferred in the absence of probable cause.

77. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

78. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under

42 U.S.C. § 1983 Against Individual Defendants

80. The above paragraphs are here incorporated by reference as though fully set forth.
81. Defendants initiated the prosecution against Plaintiff.
82. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
83. Defendants acted with malice, which may be inferred in the absence of probable cause.
84. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.
85. Accordingly, Defendants violated Plaintiff's Fourteenth Amendment rights.
86. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

87. The above paragraphs are here incorporated by reference as though fully set forth.
88. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.
89. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
90. Defendants intended to inflict substantial harm upon plaintiff.
91. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.
92. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

94. The above paragraphs are here incorporated by reference as though fully set forth.

95. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

96. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against plaintiff, especially with the absence of any cognizable probable cause.

97. Defendants intended to inflict substantial harm upon plaintiff.

98. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

99. Defendants' actions deprived plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without the due process of law.

100. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

101. The above paragraphs are here incorporated by reference as though fully set forth herein.

102. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

103. Defendants forwarded said false information to the District Attorney's Office.

104. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

105. Accordingly, Defendants violated plaintiff's right to a fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

106. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

108. The above paragraphs are here incorporated by reference as though fully set forth.

109. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

110. Defendants forwarded said false information to the District Attorney's Office.

111. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

112. Accordingly, Defendants violated Plaintiff's right to a fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution

113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

114. The above paragraphs are here incorporated by reference as though fully set forth herein.

115. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

116. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.

117. Defendants also engaged in the selective of Plaintiff, in comparison to others similarly situated.

118. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

119. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

120. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

121. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

122. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

123. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

124. The above paragraphs are here incorporated by reference as though fully set forth herein.

125. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

126. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity

127. Defendants also selectively treated Plaintiff in comparison to others similarly situated.

128. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such

as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

129. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

130. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

131. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

132. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1981, 1983, 1985 and 1986 Against Individual Defendants

133. The above paragraphs are here incorporated by reference as though fully set forth herein.

134. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of the equal protection of the laws, or of the privileges and immunities under the laws.

135. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

136. Plaintiff sustained injuries to his person or was deprived of rights or privileges of citizens of the United States.

137. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.

138. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.

139. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

140. The above paragraphs are here incorporated by reference as though fully set forth herein.

141. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

142. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

143. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

144. The above paragraphs are here incorporated by reference as though fully set forth herein.

145. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

146. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

147. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under

New York State Law

148. The above paragraphs are here incorporated by reference as though fully set forth.

149. Defendants City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

150. Defendants City breached those duties of care.

151. Defendants City placed Defendants in a position where they could inflict foreseeable harm.

152. Defendants City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

153. Defendants City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

154. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendants City

155. The above paragraphs are here incorporated by reference as though fully set forth.

156. Defendants City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

157. Defendants City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

158. Defendants City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with Defendants City's employees.

159. Defendants City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendants City and its policymakers toward the rights of individuals, who may come into contact with Defendants City's employees.

160. Defendants City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

161. Defendants City's conduct caused the violation of plaintiff's civil rights, pursuant to Constitution of the United States.

162. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiff compensatory damages in an amount to be determined by a jury;

- d) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: January 14, 2020

Respectfully submitted,



SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Blvd - Ste 201

Bayside, New York 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, Peter Sim, Esq, an attorney admitted to practice in the courts of New York State, state that I am an partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 14, 2020



PETER SIM, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CHAD REDD,

Plaintiff,

-against-

CITY OF NEW YORK, EDUARD LUCERO, individually and officially in his capacity as New York City police officer, JOHN MANZO, individually and officially in his capacity as New York City police officer, DANIEL MATTHAUS, individually and officially in his capacity as New York City police officer, ERICK REYES, individually and officially in his capacity as New York City police officer, MOHAMMA NOMANI, individually and officially in his capacity as New York City police lieutenant, and JOHN or JANE DOE 1-10, individually and in officially in their capacities as New York City police officers and/or lieutenants,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: PETER SIM

Attorney for Plaintiff

42-40 Bell Boulevard, Suite 201

Bayside, NY 11361

Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for